

states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party’s admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff’s Complaint alleges Breach of Contract as the two causes of action, based on the allegation that Defendant became indebted in the amount of \$15,058.69, on a credit card account.

Defendant’s Answer denies the allegations of the Complaint.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the “RFAs”) served on Defendant which was granted by the Court. The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$15,058.69.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 (“Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.”).

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall prepare and submit the order.

11. 9:00 AM CASE NUMBER: L25-10487
CASE NAME: MIDLAND CREDIT MANAGEMENT INC. VS. THU QUACH
***HEARING ON MOTION IN RE: SET ASIDE DEFAULT**
FILED BY: QUACH, THU
***TENTATIVE RULING**

Defendant filed a Motion to Set Aside Entry of Default. However, there is no evidence that the Plaintiff was given notice of the Motion or the hearing.

Disposition

Motion will be continued to 7/21/26, 9am.

Defendant to provide notice of Motion to Plaintiff.

Court will file Order of continuance.

12. 9:00 AM CASE NUMBER: MS25-1096

CASE NAME: EQUITY RESIDENTIAL MANAGEMENT, LLC VS. SARAH SHEPARD

***HEARING ON MOTION IN RE: DEEM PLAINTIFF S REQUESTS FOR ADMISSIONS ADMITTED**

FILED BY: EQUITY RESIDENTIAL MANAGEMENT, LLC

TENTATIVE RULING:

Background

Plaintiff filed Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted, as well for the Authenticity of Records, (Motion), along with a Declaration and Memorandum.

Plaintiff attached the particular facts at issue in their Exhibit A to their Declaration.

Plaintiff attached a proof of service of their discovery request, indicating mail service to both defendants at the address listed on their jointly filed Answer.

Plaintiff also timely served, by mail, notice of this Motion.

Defendants neither responded to the discovery request, nor to this Motion.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers – namely, Items 1 and 2 in the Request for Authenticity of Documents; and items 1 through 81 in the Request for Admission of the Truth of Facts - shall be deemed admitted.